



File No.: EXP202308985

RESOLUTION OF

PROCEEDING OF WARNING

Of the proceeding initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for the Protection of Data on June 23, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant states that the respondent has installed a surveillance camera in their residence, directed towards the public road, capturing access to the Urbanization where the residence is located, which is the workplace of the claimant, indicating that there is no authorization for this.

Along with the notification, an image of the camera's location is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The action of forwarding and requesting information was notified to the respondent on July 15, 2023, by postal means, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery receipt in the file.

The respondent replied on July 15, 2023, stating that due to a conflict with workers of the urbanization opposing access control to it, they are having problems with them. There are complaints filed with the Civil Guard for harassment and coercion.

They request a copy of the complaint to add to the other evidence that supports this type of behavior. They decided to install the camera for their safety. It is a single camera purchased online (a copy of the invoice is provided) and which, according to their statement, only captures their property and therefore the processing of the images would be domestic processing that falls outside the jurisdiction of this Agency.

They provide an image of the camera's field of view, which shows that it captures part of the public road or community road located on the other side of the boundary fence of their property.

THIRD: On September 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On February 8, 2024, the Director of the Spanish Agency for the Protection of Data decided to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on February 9, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On February 11, 2024, a written statement of allegations was received from the respondent in which, in summary, it was claimed that the camera was correctly signposted.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for the Protection of Data in the present proceeding,

PROVEN FACTS

FIRST: It is established that the respondent installed a surveillance camera in their residence, which captured part of the public road or community road located on the other side of the boundary fence of their property.

It is established that the respondent correctly signposted the existence of the camera with an informative sign placed on the outer fence of their property, as evidenced in the allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this proceeding.

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3/9

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Claims Made

In relation to the claims made regarding the initiation agreement of the present warning procedure, a response is provided according to the order presented by the responding party:

"On the date of the filing of the complaint that gives rise to this file (June 23, 2023) by A.A.A., we were in the process of installing domestic cameras in our home; however, they were already correctly signposted, according to the model provided by the Spanish Data Protection Agency (hereinafter AEPD) on its own website.

However, the existing signage, which was located outside the house, was subject to continuous acts of vandalism, as a result of the situation of neighborhood harassment to which I am subjected, providing for illustrative and evidential purposes, PHOTOGRAPH 1 dated June 20, 2023.

In any case, we wish to expressly insist, as evidenced by PHOTOGRAPH 1, that from the very beginning, compliance with the signage requirements referred to by the AEPD in its initiation agreement of the warning procedure has been fulfilled, despite the fact that, in the initially submitted photographs, a general view of the exterior of the house where the existing signage could be appreciated was overlooked.

Additionally, PHOTOGRAPH 2 dated July 21, 2023 is also attached, where the approved signage for image recording placed inside can be verified, along with the camera that is visible from the public road and which was the only one existing at the time the complaint that gives rise to this file was filed. This signage is placed inside for reasons of vandalism, as already indicated above, since in its original location, it had been torn down, scratched, and painted over more than 15 times, which forced us to relocate it to its current location, where its visibility and readability are perfect, without the risk of being vandalized, leaving no doubt about this party's scrupulous compliance with the current regulations on data protection (See PHOTOGRAPH 2).

In light of the above, the existence of an infringement within the competence of the Agency is not considered proven.

For all the above reasons, this claim is deemed valid.

III

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4/9

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data. Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

IV

Information to be provided

when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

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5/9

- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement for entering into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decisions, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for

which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

V

Data Protection Regulation

Article 6.1 of the GDPR regarding the lawfulness of processing states:

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out...

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6/9

the processing of images through camera or video camera systems with the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR states that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD establishes a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data. The information of the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment. This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the event that the monitored space has several accesses, this distinctive sign of a monitored area must be placed at each of them. This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of

the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.” This means that in a specific processing operation, only the relevant personal data that is applicable and strictly necessary to fulfill the purpose for which they are processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of the data must occur both at the moment of data collection and in the subsequent processing that is carried out.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

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7/9

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public thoroughfare to ensure security purposes.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public thoroughfare unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the area subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space. Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the individuals present in those spaces.

Likewise, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

In accordance with the evidence available at the time of the agreement to initiate the warning procedure, it was considered that the party being claimed had committed an infringement of the duties of information regarding data as provided in Article 13 of the GDPR, in accordance with the provisions of Article 22 of the LOPDGDD, since in the field of vision of the installed camera it was observed that it captured part of the public thoroughfare or community road located on the other side of the fence delimiting its property. Thus, although the portion captured would be proportional, the responsible party would have to comply with the obligation to provide information through the display of informative signs since the processing of the images would cease to be considered domestic by capturing beyond the property of the claimed party, and it was not established that there were informative signs.

In this case, the claimed party did place the informative sign properly, as evidenced in their allegations, so no infringement would have been verified.

The above must be connected to the validity in our Administrative Sanctioning Law of the principle of the presumption of innocence recognized in Article 24.2 of the Spanish Constitution, in such a way that the exercise of the State's sanctioning power, in its various manifestations, is conditioned by the evidence and a contradictory procedure in which the parties can defend their positions.

The principle of the presumption of innocence prevents the imputation of an administrative infringement when no evidence has been obtained and verified that substantiates the claim.

C/ Jorge Juan, 6

facts that motivate the accusation or the intervention of the alleged offender.

The Constitutional Court (SSTC 131/2003 and 242/2005, among others) has ruled in this regard by indicating that one of the requirements inherent to the right to the presumption of innocence is that the sanction must be based on acts or incriminating evidence of the conduct attributed and that the burden of proof regarding the commission of the administrative offense and the participation of the accused falls on the acting public Administration.

For its part, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility" and determines in this regard that:

"Only individuals and legal entities, as well as, when a Law recognizes them the capacity to act, groups of affected parties, unions and entities without legal personality, and independent or autonomous assets, that are found responsible for the same by way of intent or negligence, may be sanctioned for acts constituting administrative offenses."

Likewise, it must be taken into account what is established in Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which states that:

"In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

Therefore, based on the aforementioned paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, regarding the duty of information set forth in Article 13 of the GDPR, in the present case.

Thus, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present warning procedure against B.B.B., with NIF ***NIF.1.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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